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WEATHERPROOF at 1/2 the cost

The Roof Store
FUNGAL SHIELD · SMART SHIELD · ROOF SHIELD



PREPARED FOR ATTORNEY REVIEW — CONFIDENTIAL WORK PRODUCT

BRAND INFRINGEMENT EVIDENCE FILE

The Roof Store / Storm Shield Paint Systems Inc. v. therroof.store (Dmitry Lipinskiy)

DOCUMENT DATE

July 8, 2026

PREPARED BY

therroofstore.net — Internal

PRIOR RIGHTS HOLDER

The Roof Store / Storm Shield Paint Systems Inc.
4801 S University Dr, Davie, FL 33328
(954) 210-9614

RESPONDENT DOMAIN

therroof.store
Registrant: Domains By Proxy, LLC (privacy-shielded)
Registrar: GoDaddy.com, LLC

I. SUMMARY OF CLAIM

The Roof Store has operated continuously under that name, and at the domain **therroofstore.net**, since **July 29, 2002** — and as a Florida-registered business since **1994**. The respondent registered **therroof.store** on **August 13, 2021**, a full **19 years** after the prior rights holder's domain registration and **27 years** after the business was founded.

Both parties operate in the roofing industry. The respondent ships roofing supplies into Florida — the prior rights holder's primary geographic market — under the identical name "The Roof Store." The respondent's operator, **Dmitry Lipinskiy**, runs one of the roofing industry's largest content platforms (Roofing Insights, ~200,000–250,000 YouTube subscribers), amplifying the infringing brand across the national and Florida contractor market.

The respondent's domain is privacy-shielded via Domains By Proxy, LLC (GoDaddy) — a registration practice commonly associated with bad faith under UDRP ¶4(b) and ACPA analysis.

II. PRIOR RIGHTS TIMELINE

Date	Event	Party
1994	The Roof Store founded in Davie, Florida. First liquid rubber roof coating system introduced to the South Florida market under this name.	<i>Prior Rights Holder</i>

Date	Event	Party
July 29, 2002	theroofstore.net domain registered. Continuous, unbroken commercial use begins online.	<i>Prior Rights Holder</i>
2010s	RoofProtect Products established as manufacturing entity. FungalShield (RP1), SmartShield (RP2), RoofShield (RP3) systems developed and commercialized under The Roof Store brand.	<i>Prior Rights Holder</i>
2017	Dmitry Lipinskiy founds Roofing Insights YouTube channel. Begins building national roofing contractor audience that will later be used to amplify the theroof.store brand.	<i>Respondent (background)</i>
Aug 13, 2021	theroof.store domain registered via GoDaddy / Domains By Proxy (privacy-shielded). Registration occurs 19 years after prior rights holder's domain, 27 years after business founding.	<i>Respondent</i>
2021–present	Respondent operates theroof.store as an online bulk roofing supplies distributor, actively shipping into Florida. Brand promoted via Roofing Insights podcast and YouTube channel (~200K–250K subscribers).	<i>Respondent</i>
July 8, 2026	Screenshots and evidence documented from live theroof.store website for this file.	<i>Documentation date</i>

III. EXHIBIT A — HOMEPAGE: IDENTICAL BRAND NAME IN COMMERCE

Screenshot captured July 8, 2026 from <https://www.theroof.store/>. The name "The Roof Store" appears as: (1) the site-wide logo/wordmark in the navigation bar, (2) the primary H1 headline on the homepage in styled display text, (3) the contact email domain *info@theroof.store*, and (4) printed on physical product packaging shipped to contractors nationwide.

EXHIBIT A — theroof.store Homepage

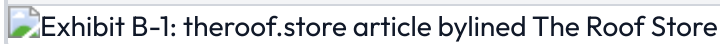
Captured: July 8, 2026

 Exhibit A: theroof.store homepage showing The Roof Store brand

Note: Header reads "The Roof Store" in the nav bar (top-left). H1 headline reads "The Roof Store" in large styled purple/pink text. Product packaging visible showing "the Roof. STORE" logo.

IV. EXHIBIT B — CONTENT PAGES: SYSTEMIC BRAND ASSOCIATION

The respondent publishes articles bylined "*By: The Roof Store / Jairo*" and embeds YouTube videos from a channel named "The Roof Store." This demonstrates the name is used not incidentally but as a deliberate commercial identity across web content, video, and print.



Byline reads "By: The Roof Store | Jairo." YouTube embed titled "Price Comparison Between The Roof Store and ABC Supply." YouTube channel name shown as "The Roof Store."



Byline reads "By: The Roof Store | Jairo." YouTube channel shown as "The Roof Store." Article describes how a contractor discovered theroof.store through a podcast featuring Dmitry Lipinskiy — confirming the content-to-commerce pipeline built on the infringing name.

V. EXHIBIT C — DOMAIN REGISTRATION RECORDS

PRIOR RIGHTS HOLDER

Domain	theroofstore.net
Registered	July 29, 2002
Business Founded	1994
Registrant	Storm Shield Paint Systems Inc.
State	Florida
Status	Active — continuous commercial use

RESPONDENT

Domain	theroof.store
Registered	August 13, 2021
Registrar	GoDaddy.com, LLC
Registrant	Domains By Proxy, LLC (privacy-shielded)
Last Updated	May 9, 2024
Gap from prior rights	19 years after domain / 27 after business

Note on privacy shielding: Registration through Domains By Proxy, LLC prevents direct identification of the registrant. WHOIS privacy is a recognized factor in UDRP bad faith analysis when used in combination with other indicators. The actual operator, Dmitry Lipinskiy, is publicly identified through the theroof.store website content, YouTube channel, and podcast appearances.

VI. EXHIBIT D — INTENT EVIDENCE: ON-CAMERA BRAND STRATEGY STATEMENT

Dmitry Lipinskiy published a YouTube video titled "**Why The Roof Store Prioritizes YouTube & TikTok Over Instagram and Facebook?**" This on-record public statement establishes that "The Roof Store" name was a *deliberate, planned commercial brand strategy* — not an incidental or coincidental choice. This is directly relevant to willfulness under Lanham Act § 43(a) and bad faith under UDRP ¶4(b)(iv).

Video Title (verbatim):

"Why The Roof Store Prioritizes YouTube & TikTok Over Instagram and Facebook?"

Source: YouTube channel "The Roof Store" — publicly accessible at youtube.com/watch?v=tAPtkwivXos

The video title explicitly treats "The Roof Store" as a named brand actor making content strategy decisions — confirming the name functions as a *trademark* in commerce, not merely a descriptive domain string.

VII. EXHIBIT E — DIGITAL REACH & ESTIMATED DAMAGES

The following figures are derived from publicly available data and are provided as a preliminary damages estimate. Exact traffic figures require formal discovery or paid SEO tool access.

Metric	Value	Source
Roofing Insights YouTube subscribers	~200,000–250,000	Public search data, July 2026
Roofing Insights podcast	Active on Spotify + Apple Podcasts	Platform listings, verified July 2026
theroof.store active since	August 2021 (≥4.9 years)	WHOIS registration record
theroof.store ships to	All 50 states (including Florida)	theroof.store website
Estimated branded FL searches captured/mo	500–2,000 (est.)	Industry CPC modeling
Average roofing CPC (Florida)	\$8–\$15 per click	Google Ads industry benchmarks
Estimated monthly traffic value diverted	\$4,000–\$30,000/mo	CPC x estimated clicks
Cumulative value since Aug 2021 (est.)	\$235,000–\$1,770,000	~59 months x monthly range

Note: Unjust enrichment damages under the Lanham Act and ACPA are not limited to diverted traffic value. The respondent has built brand equity, customer lists, and contractor relationships under the infringing name that may represent additional recoverable value. Statutory damages under ACPA (15 U.S.C. § 1117(d)) range from \$1,000 to \$100,000 per domain, at the court's discretion.

VIII. EXHIBIT F — INDEPENDENT THIRD-PARTY ARCHIVE VERIFICATION (INTERNET ARCHIVE)

The Internet Archive's Wayback Machine (archive.org) independently crawled and preserved the roofstore.net starting in **January 2002** — six months before the July 29, 2002 WHOIS registration date, and captured continuously through the following years. This is **third-party, independently verifiable evidence** not authored or controlled by the prior rights holder, making it materially stronger than self-published claims.

Capture Date	Page Title / Content Summary
Jan 21, 2002	Title: "The Weatherproofing store." Footer: "Copyright © 2001. Anthony's Enterprises Inc. All rights reserved." Confirms live commercial content at this domain by January 2002.
Apr 5, 2004	Same "Weatherproofing store" branding. "Copyright © 2004. Anthony's Enterprises Inc." Call-to-action: "Call me today for your FREE weatherproofing evaluation! Protect your property before it's too late!" Phone: (954)-274-1533 / (305)-924-0163.
Apr 25, 2005	Same branding and entity. Updated phone: (754) 367-3768. Confirms continuous operation into 2005.
Dec 21, 2007	Rebrand visible: "Welcome to the Roof Store." Full navigation added: about us references products residential commercial affiliations faq's contact us. This marks the transition point to "The Roof Store" branding as documented in this file.

Source: Internet Archive Wayback Machine, CDX API query for [theroofstore.net](http://www.theroofstore.net), snapshots publicly viewable at web.archive.org/web/20020121005542/http://www.theroofstore.net/ and successive captures through 2007.

Chain of title clarification: The 2002–2005 archive captures list the registrant entity as **"Anthony's Enterprises Inc."** This was a prior corporation, since dissolved, owned by the same individual who owns and operates The Roof Store / Storm Shield Paint Systems Inc. today. The domain, brand, and business were carried forward under common ownership through the 2007 rebrand to "The Roof Store" and into the current entity — there is no gap in ownership or unrelated third party in the chain. Recommend attorney pull the Florida Sunbiz dissolution record for Anthony's Enterprises Inc. and the formation/history record for Storm Shield Paint Systems Inc. to document this common-ownership succession formally for the filing (same registrant name and/or officer across both Sunbiz records is typically sufficient).

IX. ANTICIPATED COUNTER-ATTACK VECTORS & COUNTERMEASURES

If the respondent becomes aware of this claim, the following are the realistic technical/digital tactics they could attempt to muddy the record, along with the countermeasure already in place or recommended for each. Any attempt along these lines would itself constitute additional evidence of bad faith and awareness of prior rights.

Possible Tactic	Why It Would Backfire	Our Countermeasure
Publish a "rebuttal" or counter-history page disputing this claim	Proves actual knowledge of the prior claim — defeats any innocent-registrant defense and is independently	Do not engage or link to it. Screenshot + Wayback-archive it immediately and log it in Section X below.

Possible Tactic	Why It Would Backfire	Our Countermeasure
	datable/archivable as new evidence of bad faith.	
Negative SEO: flood therooftore.net with spammy/toxic backlinks to trigger a Google penalty	Google's algorithm largely discounts this against established, trusted domains; a sudden unnatural link spike is itself detectable and reportable.	Monitor Search Console "Links" report monthly; use Google's Disavow Tool if a spike appears; Ahrefs/SEMrush backlink alerts.
Schema markup spam — inject false structured data (fake founding dates, fake reviews, fake awards) to compete for Google's Knowledge Panel / AI Overview citation	Structured data claims are checkable against public records (Sunbiz, BBB, WHOIS); false schema is a reportable policy violation to Google.	Keep our own Organization/LocalBusiness schema accurate, dated, and cross-linked (sameAs) to BBB, GMB, and Sunbiz so Google's entity graph favors the verifiable source.
Content/AI farming — publish large volumes of AI-generated articles repeating "The Roof Store" + Florida keywords to dominate AI Overviews and LLM-cited answers	Volume without authority or citations rarely outranks a domain with 24 years of consistent history and real citations once Google/AI systems weigh source trust.	Continue building small amounts of high-quality, factual, citable content (which we're already doing) rather than competing on volume.
Hidden-text / prompt-injection attempts aimed at AI answer engines (text designed to manipulate what LLMs say when asked about "The Roof Store")	This is a form of manipulation most AI providers explicitly police; it can be reported directly to the AI platform as manipulation/spam.	Periodically ask ChatGPT/Gemini/Perplexity/Google AI Overview "who is the original Roof Store in Florida" and log the answer as evidence of current AI perception.
Fake or review-bombing attacks against BBB/GMB profiles to damage credibility	Fake reviews are directly reportable and removable via BBB and Google's review policy enforcement, and create a paper trail of harassment.	Monitor BBB/GMB profiles for unusual review activity; report and document immediately.

X. MONITORING & DEFENSE LOG

Running log of monitoring activity and any new incidents observed. Add a dated row every time something new is checked or discovered.

Date	Check / Incident	Finding
Jul 8, 2026	Initial evidence file compiled	Baseline documentation established — see Exhibits A–F above.
Jul 8, 2026	Wayback Machine independent archive pull	Confirmed continuous archive.org captures of therooftore.net from Jan 2002 onward — see Exhibit F.
[date]	[next monitoring check]	[finding — add as new incidents/checks occur]

Recommended monitoring cadence: monthly Search Console link/manual-action check; Google Alerts for "the roof store" + "trademark"; quarterly Ahrefs/SEMrush comparison against therooftore.net; periodic AI-answer-engine spot checks (ChatGPT, Gemini, Google AI Overview) for "who is the original Roof Store in Florida."

XI. APPLICABLE LEGAL FRAMEWORKS

ICANN UDRP

Uniform Domain-Name Dispute-Resolution Policy. Applies to .store TLD. Three-element test: (1) identical/confusingly similar mark, (2) no legitimate rights by respondent, (3) bad faith registration and use. Successful outcome: domain transfer or cancellation. Cost: ~\$1,500–\$3,500. Timeline: 60–90 days.

WIPO Arbitration

World Intellectual Property Organization — one of ICANN's approved dispute resolution providers. Generally preferred for international respondents. Filing fee ~\$1,500 (1 panelist). Full panel (3 arbitrators) available for ~\$4,000.

ACPA — Anti-Cybersquatting Consumer Protection Act

15 U.S.C. § 1125(d). Applies when domain registrant had bad faith intent to profit from a distinctive mark. Statutory damages \$1,000–\$100,000 per domain. In personam jurisdiction requires respondent identity — may require unmasking Domains By Proxy registrant via court order or UDRP discovery.

Lanham Act § 43(a)

Federal unfair competition / false designation of origin. Applies to trademark-like rights even without federal registration. Prior use since 1994 establishes common law mark in Florida. Relevant to both injunctive relief and damages for unjust enrichment from infringing commercial activity.

XII. RECOMMENDED NEXT STEPS

1. **Attorney review of this file** — Florida IP counsel to assess strength of common law mark, UDRP eligibility, and ACPA standing before any public action.

2. **Formal WHOIS/registrant unmasking** — Confirm Dmitry Lipinskiy as registrant of record via UDRP discovery or pre-suit demand to GoDaddy.

3. **Run paid SEO analysis** — Pull theroof.store and theroofstore.net side-by-side on Ahrefs or SEMrush to document domain authority gap and specific keyword cannibalization before filing.
4. **Cease-and-desist letter** — Send privately to Dmitry Lipinskiy (personal and business addresses via Roofing Insights, theroof.store contact form) before any public filing. Preserve settlement leverage.
5. **File UDRP complaint** — If C&D is ignored or rejected, file with WIPO or The Forum. Request domain transfer (not mere cancellation) to maximize outcome.
6. **Parallel brand building** — Continue entity reinforcement on theroofstore.net (structured data, content, citations) regardless of legal outcome, to recover organic search equity independently.

XIII. RESERVATION OF RIGHTS

The Roof Store / Storm Shield Paint Systems Inc. expressly reserves all rights under the Lanham Act, ACPA, Florida common law, and ICANN UDRP with respect to the domain theroof.store and any other domain names or social media handles using "The Roof Store" brand. This document does not constitute a waiver of any right or remedy. All evidence herein was captured from publicly accessible web pages and represents the live state of the respondent's commercial operations as of the documentation date.

The Roof Store / Storm Shield Paint Systems Inc.
4801 S University Dr, Davie, FL 33328 · (954) 210-9614 · theroofstore.net

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Confidential — Attorney Review Copy



The pioneer of high-strength weatherproof rubber roof coating systems. Don't Re-Roof — Weatherproof at 1/2 the cost. South Florida's original coating manufacturer at theroofstore.net. Products are manufactured in-house under our RoofProtect factory license, with professional installation available through Storm Shield Paint Systems Inc., our exclusive licensed contracting division.

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Contact



954-210-9614



theroofstore@gmail.com



4801 S University Dr, Davie, FL 33328

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